

be that a power of mortgaging alone authorises a mortgage with a power of sale. Of course where the *Court* has jurisdiction to raise money * out of an estate, as [*427] for payment of debts, it may either direct a sale, or a mortgage with a power of sale (*a*), and an executor is, for the purposes of paying debts, regarded as the absolute owner, and may therefore either sell or mortgage or give a mortgage with a power of sale (*b*). [Since the Conveyancing and Law of Property Act, 1881, under which mortgagees, where the mortgage is made by deed, have by virtue of the Act a power of sale vested in them, the point has become practically unimportant; but it is conceived that, as by the 66th section of the Act, a power of sale in the form contained in the Act is in effect declared to be a proper power to be contained in a mortgage deed, it cannot be contended that a power to mortgage does not now authorise the insertion of a power of sale in the mortgage deed.]

16. **Sale of equity of redemption.**—If an equity of redemption be vested in trustees for sale with a direction to apply the proceeds in discharge of the *mortgage* and pay the balance to the settlor, the trustees, notwithstanding the direction to discharge the mortgage, may *sell subject to it* (*c*).

17. **A power of sale will not authorise a partition.**—A power to trustees to *sell* will not authorise a *partition*, and it was long considered doubtful whether a power to *sell and exchange* would do so (*d*), [but it has recently been decided that under the usual power of sale or exchange a partition can be effected (*e*), and this decision is not likely to be disturbed.

18. **Effect of usual power of sale in settlements.**—Prior to the Settled Land Act, 1882,] in *settlements* of real estates a *power of sale* was usually given to trustees, to be exercised

(*a*) *Selby v. Cooling*, 23 Beav. 418.

(*b*) *Cruikshank v. Duffin*, 13 L. R. Eq. 555; and see *Earl Vane v. Rigden*, 5 L. R. Ch. App. 663.

(*c*) *Manser v. Dix*, 8 De G. M. & G. 703.

(*d*) [*M'Queen v. Farquhar*, 11 Ves. 467; *Attorney-General v. Hamilton*,

1 Madd. 214]; *Brassey v. Chalmers*, 16 Beav. 223; 4 De G. M. & G. 528; *Bradshaw v. Fane*, 2 Jur. N. S. 247; 3 Drew. 534.

(*e*) [*In re Frith and Osborne*, 3 Ch. D. 618, and see *Doe v. Spencer*, 2 Exch. 752; *Abel v. Heathcote*, 4 Bro. C. C. 278; 2 Ves. 98.